

MASTER AUTHORITY INDEX

Applicability map • currentness register • update protocol

PROPERTY	9401 Nieman Road, Overland Park, Kansas 66214
CURRENT THROUGH	July 12, 2026
ACTIVE-SET STATUS	Current-law set; enacted addenda included; withdrawn sources excluded
SCOPE	Kansas residential operations, federal/HUD overlays, and Overland Park municipal law relevant to GH's fourplex

Use rule: Retrieve the controlling text, confirm the trigger and currentness, then obtain Kansas counsel review before enforcement, filing, denial, accommodation decisions, or material lease changes.

This compilation is a research and retrieval aid, not legal advice, a title opinion, or a substitute for official current law. Summaries and applicability labels are navigation aids; the appended official text controls.

Executive use instructions

This is the controlling navigation document for the active project-source set. Begin here, identify the issue and trigger, then open the cited source bundle. A source's presence does not mean every provision applies to every event.

- Prefer current binding statutes, regulations, ordinances and controlling decisions over summaries or agency guidance.
- Treat proposed rules as monitoring only and withdrawn guidance as historical only.
- For notices, evictions, denials, adverse action, accommodation decisions, deposit deductions, fee enforcement or filings, verify the exact current text and obtain Kansas counsel review.
- Never blend a superseded version with current wording. Effective-but-not-yet-codified session laws travel as explicit addenda.

LABEL	HOW TO USE IT
BINDING	Statute, regulation, ordinance, or controlling court decision. Confirm effective date and later history.
CONDITIONAL	Binding only when a stated trigger exists—such as HUD assistance, a federally backed mortgage, or third-party management.
GUIDANCE	Agency or court-administration material. Useful operationally but not itself controlling law unless incorporated.
PROPOSED	Monitoring only. Do not apply as current law.
WITHDRAWN	Excluded from this active set. Keep only in a separately labeled historical archive.

Property applicability and unresolved triggers

Issue	FAIRUS	Lead Effect
Four dwelling units	Verified in project profile	Apply FHA/Kansas fair housing conservatively; do not assume owner-occupied small-property exemption.
LLC ownership	Verified	Owner-occupancy exemption analysis is not established; counsel should confirm.
Construction year	Public sources report 1963; official county record not yet verified	Treat federal/Kansas lead disclosure and renovation rules as active until official verification.
Rental license	Direct city requirement	Confirm current Overland Park license and inspection status.
Federally backed mortgage	Unknown	Controls CARES Act covered-property analysis and may affect HUD equal-access rules.
Voucher / HUD assistance	Unknown	Controls HCV addendum, VAWA, Section 504, Title VI, HUD lead-safe rules and other program duties.
Owner versus third-party manager	GH manages its property; future third-party services unknown	Kansas broker/property-management licensing can become active for compensated third-party management.
Property zoning / lawful occupancy	R-3 appears plausible but not verified to parcel	Verify official parcel zoning and any lawful nonconforming status before relying on zoning excerpts.

Conservative default: unless counsel verifies an exemption, act as though federal and Kansas fair-housing duties apply fully. Do not rely on a four-unit exemption without proof of the required owner occupancy and entity analysis.

Issue-to-source map

Issue	GH Code	Primary Authority
Lease terms, deposits, duties, entry, remedies	GH-KS-01	K.S.A. 58-2540-2573; Article 25 source text
Notice, eviction, court process	GH-KS-02	K.S.A. 61 procedure + 2026 HB 2357 + current cases
State protected classes / local civil rights	GH-KS-02 + GH-OP-01	K.S.A. 44-1015-1029; OPMC 8.10
Federal fair housing / advertising	GH-FED-01	42 U.S.C. ch. 45; 24 CFR Parts 100, 103, 110
Assistance animals / accommodations	GH-FED-01	42 U.S.C. 3604(f); 24 CFR 100.204; 2026 HUD memo is guidance
Lead disclosure / renovation	GH-FED-02 + GH-KS-02	Pre-1978 trigger; EPA/HUD/KDHE sources
Screening / adverse action / tenant data	GH-FED-02 + GH-KS-02	FCRA, Disposal Rule, Kansas credit/data law
Military, bankruptcy, foreclosure, CARES	GH-FED-02	Trigger-specific federal overlays
Voucher / HUD-assisted / VAWA / Section 504	GH-FED-03	Conditional on verified program/mortgage/assistance facts
Rental license / inspection / property upkeep	GH-OP-01	OPMC 5.75 and Title 7 chapters
Fire, building systems, zoning, parking	GH-OP-02	OPMC Titles 16 and 18; base ICC text incorporated separately

Search tip: query an exact citation first (for example, “58-2550,” “24 CFR 100.204,” or “OPMC 5.75”), then search the operational concept.

Currentness register — material 2026 changes

Kansas statutes	Official 2026 pages retrieved July 12, 2026; some displayed eviction sections still require session-law overlays.	Current consolidated PDFs + HB 2357 and SB 391 enrolled PDFs.
HB 2357	Effective July 1, 2026: eviction-record expungement and mediation provisions.	Binding enacted addendum; do not use earlier bill versions.
SB 391	Effective July 1, 2026 after veto override: specified local voucher/screening/deposit/right-of-first-refusal preemption.	Binding state-local overlay; federal/state fair housing and FCRA still control.
eCFR	Federal regulation snapshot dated July 9, 2026.	Binding current regulation text in federal bundles.
HUD guidance withdrawals	91 FR 17291 (Apr. 6, 2026) records withdrawal of listed FHEO guidance effective Sept. 17, 2025.	Withdrawn items excluded from active authority; withdrawal notice retained.
Assistance animals	HUD memo dated May 22, 2026 is enforcement guidance, not a rule.	Label GUIDANCE. Statute, 24 CFR 100.204, precedent and private rights remain controlling.
Disparate impact	24 CFR 100.500 remains in force; Jan. 2026 removal is proposed only.	Current regulation retained; proposal excluded from operative authority.
HUD equal access	24 CFR 5.105(a)(2) remains current; 2026 revisions are proposed only.	Conditional on HUD-assisted or HUD-insured housing trigger.
Overland Park codes	Official city exports retrieved July 12, 2026; city adopted the 2024 International Code package in 2026.	Local amendments included. Copyrighted ICC base texts are incorporated but not reproduced.

GH-specific high-priority legal review queue

Priority	Review Point
Fee policy and lease mismatch	The project policy can total 25% of monthly rent in staged late fees plus 12% simple annual interest, while current signed leases may contain an older schedule. No source in this pack validates that structure. Review under K.S.A. 58-2544, 58-2547 and applicable consumer/unconscionability law before enforcement; Schutt v. Foster is not blanket approval.
Default / cure / eviction notices	Kansas timing, content, service and court-process rules are exacting. McConnell requires a 14/30 notice to identify curable acts or omissions with sufficient specificity. Do not use self-help or rely only on email/e-sign delivery.
Lead	Public sources report a 1963 build, making federal disclosure and renovation rules likely direct. Verify official year, keep signed disclosures/pamphlet acknowledgments, and use certified firms/renovators where required.
Fair housing poster	24 CFR Part 110 generally requires display at covered property and places of business. Verify and post the current HUD-928.1 poster.
Assistance animals	The May 2026 HUD memo changes enforcement posture but does not rewrite the FHA or 24 CFR 100.204. Use an individualized accommodation process; obtain counsel for denials or disputed documentation.
Federal-program status	Determine mortgage backing and whether any unit participates in HCV or another HUD program. This changes CARES, VAWA, Section 504, Title VI, lead-safe housing and form/addendum duties.
Fire / grill policy	Overland Park's adopted fire-code package and amendments may constrain open-flame cooking at a fourplex. Compare the lease policy with the current code and obtain fire-official/counsel confirmation; the proprietary ICC base text is not reproduced here.
Sensitive application data	Use federal and Kansas screening/adverse-action rules; retain only what is needed and securely destroy consumer-report and personal-information records.

Withdrawn, proposed and historical material

The following are intentionally not treated as current operative authority: HUD’s 2013/2020 assistance-animal notices; 2007 LEP guidance; 2016 criminal-record and LEP guidance; the 2022 criminal-record implementation memo; the 2021 sexual-orientation/gender-identity enforcement memo; the 2016 HUD/DOJ land-use statement; 2024 digital-advertising guidance; and 2024 source-of-income testing memorandum. The April 2026 Federal Register withdrawal notice is included to document status.

- HUD’s January 2026 disparate-impact proposal is not current law; 24 CFR 100.500 remains operative as of this snapshot.
- HUD’s April 2026 equal-access revisions are proposed, not final; current 24 CFR 5.105(a)(2) remains in the conditional federal set.
- Kansas introduced bills and ‘Measures Affecting This Section’ cards are not law unless final enactment and effective date are verified.
- Historical session laws belong in a dated archive with valid-from/valid-to metadata. They should not be uploaded into the active ChatGPT source set unless a past-period question requires them.

Why no synthetic ‘patched law book’: combining historical wording and addenda into a rewritten rule creates a serious retrieval risk. A law-firm-style system keeps current consolidated text active, attaches enacted-but-not-integrated session laws, and preserves prior versions separately.

Update and replacement protocol

EVENT	ACTION
Monthly	Check Kansas Legislature/Revisor alerts, eCFR changes, HUD/EPA notices, Overland Park ordinances and material appellate decisions.
Quarterly	Re-retrieve all active sources, compare SHA-256 fingerprints, review proposals/withdrawals and issue a dated change log.
Kansas session close / July 1	Check enrolled bills, vetoes/overrides, Session Laws, statute-book effective dates and delayed codification.
Before any high-risk action	Live-check the exact statute/regulation/city section and local court rules; do not rely only on this snapshot.
When replacing project sources	Replace the full active set and master manifest together. Remove superseded active PDFs so ChatGPT cannot retrieve conflicting versions.
Historical research	Load only the dated archive needed for the event period, then remove it from the active workspace when the task is complete.

Active bundle register

File	Page	Topic
GH-KS-01_Kansas-Residential-Landlord-Tenant-Primary-Law_CURRENT.pdf	108	Kansas Article 25 / KRLTA primary text
GH-KS-02_Kansas-Eviction-Fair-Housing-Screening-Safety-Addenda_CURRENT.pdf	471	Kansas eviction, fair housing, screening, safety, 2026 addenda and cases
GH-FED-01_Federal-Fair-Housing-HUD-Regulations_CURRENT.pdf	156	Federal fair housing and current HUD regulations/guidance status
GH-FED-02_Lead-Screening-Military-Foreclosure-Electronic-Overlays_CURRENT.pdf	444	Federal lead, screening, service, foreclosure, military and communications overlays
GH-FED-03_CONDITIONAL-HUD-HCV-VAWA-Section504-Programs.pdf	199	Conditional HUD-assisted / federally backed program rules
GH-OP-01_Overland-Park-Rental-Property-Civil-Rights-Code_CURRENT.pdf	167	Overland Park rental operations, property maintenance and civil rights
GH-OP-02_Overland-Park-Building-Fire-Systems-Zoning-Code_CURRENT.pdf	166	Overland Park building, fire, systems and zoning amendments

Official portals for live verification

[Kansas Legislature — 2026 statutes](https://www.kslegislature.gov/b2025_26/laws/)

https://www.kslegislature.gov/b2025_26/laws/

[Kansas Secretary of State — Session Laws](https://sos.ks.gov/publications/session-laws.html)

<https://sos.ks.gov/publications/session-laws.html>

[Kansas Judicial Council — landlord/tenant forms](https://www.kjc.ks.gov/legal-forms/evictions-landlord-tenant)

<https://www.kjc.ks.gov/legal-forms/evictions-landlord-tenant>

[eCFR](https://www.ecfr.gov/)

<https://www.ecfr.gov/>

[U.S. Code](https://uscode.house.gov/)

<https://uscode.house.gov/>

[HUD fair housing](https://www.hud.gov/fairhousing)

<https://www.hud.gov/fairhousing>

[EPA lead](https://www.epa.gov/lead)

<https://www.epa.gov/lead>

[Overland Park municipal code](https://online.encodeplus.com/regs/overlandpark-ks/)

<https://online.encodeplus.com/regs/overlandpark-ks/>

[Overland Park rental licensing](https://www.opkansas.gov/rental-licensing-and-inspection)

<https://www.opkansas.gov/rental-licensing-and-inspection>

[Overland Park building codes](https://www.opkansas.gov/building-codes)

<https://www.opkansas.gov/building-codes>

Prepared for internal research and source retrieval. Not legal advice. Confirm official current law and engage licensed Kansas counsel for legal conclusions or action.